

## K.T.L. Automobile Pvt. Ltd. v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 22 September 2023 · 2023:AHC-LKO:61468-DB · Writ - C No. 8045 of 2023 · **Clause 6.5 objections to be decided in ten days; demand subject thereto**

### HEADNOTE

Where a consumer has already raised objections to electricity bills under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, the writ is disposed by directing that officer to decide the objections within ten days, with any demand on those bills subject to the decision.

### FACTUAL SUMMARY

K.T.L. Automobile Pvt. Ltd., through its authorised representative Ishaan Dayal, approached the Lucknow Bench of the Allahabad High Court stating that it had already disputed certain electricity bills raised by Madhyanchal Vidyut Vitran Nigam Ltd. The dispute had been lodged under clause 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, Electricity Urban Distribution Division (Chinhat), Lucknow. Counsel for the licensee told the Court, on instructions, that the objections would be considered and decided without delay.

### HOLDING-UNITS

#### HOLDING-UNIT · U.P. Electricity Supply Code, 2005, clause 6.5

Pending clause 6.5 objections; demand subject to decision

#### HOLDING

Respondent no. 4, the Executive Engineer, shall decide the petitioner's objections to the disputed bills under clause 6.5 of the U.P. Electricity Supply Code, 2005 within ten days, and any demand on those bills shall be subject to the order so passed. ¶ 1

### PRINCIPLE TAGS

**clause-6.5-pending-representation-to-be-decided** The Executive Engineer was directed to decide the consumer's pending clause 6.5 objections within ten days, and recovery of the bills was made subject to that decision. ¶ 1

**6.5-pending-complaint-writ-remitted** The writ was disposed without a merits decision on the bills, leaving the pending clause 6.5 objections to the Executive Engineer. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — CORRECTNESS AND QUANTIFICATION OF THE DISPUTED BILLS

Left to the Executive Engineer under clause 6.5; the Court did not examine the bills on merits. ¶ 1